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ANIMAL WELFARE BOARD OF INDIA

(Ministry of Environment and Forests, Govt. of India)

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Email : awbi@md3.vsnl.net.in Website: www.awbi.org

No.2-2/2014-15-AGM

Dt.06.05.2015

To
The Director,
Animal Husbandry Department of
All States and UTs
(list attached)

Sir,

Sub:- Streamlining the issue of the certificate under Rule 96 of the Transport of Animals Rules, 2001 by Railways/ Trucks and Implementation of Transport of Animals Rules, 1978 (and as amended in 2001 & 2009)– Reg. Ref.: Chairman, AWBI letter of even number dated 11th August, 2010 & our office letter dated 9th August, 2012 & 25th July, 2014

Kindly refer to our Chairman's letter of even number dated 11th August, 2010 & letter dated 9th August, 2012 and 25th July, 2014 (copy enclosed). In this connection, I am directed to request you to kindly direct the concerned authorities to strictly implement the Prevention of Cruelty to Animals Act, 1960 and its Rules including Transport of Animals, Rules, 1978 (as amended in 2001 and 2009) in letter and spirit and ensure that animals being transported by rail/road are done only after issuing a certificate under Rule 96, issued by an Authorised Officer.

The Board in this 46th AGM dated 19-20, December, 2014 discussed to formulate a mechanism to ensure effective implementation of Rule 96 on Transportation of Animals Rules is implemented in letter and spirit.

In this connection, a model proforma to be issued under Rule 96 of the Transport of Animals Rules, 2001 is enclosed herewith for your kind perusal with a request to circulate the same to all the concerned officials for issuing the certificate under Rule 96 and to ensure that the implementation of Rule 96 and the directions of the Hon'ble Supreme Court of India in SLP (C) No.11686 of 2007, Animal Welfare Board of India Vs A. Nagaraja & Ors is strictly followed and the provisions of the Prevention of Cruelty to Animals Act, 1960 are effectively implemented to prevent the unnecessary pain and suffering to animals in letter and spirit.

.2.

It is also requested to forward a report on the details of the number of such certificates issued during the last five years (2010-11, 2011-12, 2012-13, 2013-14 & 2014-15) in your state. Since the certificates are issued at the behest of AWBI, it is requested that a copy of such certificates issued be may also be kindly forwarded to the Board for our official record immediately. It is also requested that henceforth the details may be provided periodically on every month basis from the current financial year for our record.

Kindly acknowledge and forward the action taken report to the Board at the earliest.

Yours faithfully,



(S. VINOD KUMAAR)
Assistant Secretary

Encl. as above.

Copy to: for information and necessary action.

- 1) The Chief Secretary of all the States & Union Territories
- 2) The Director General of Police all the States & Union Territories
- 3) The Director of Animal Husbandry & Veterinary Services Department
all the States & Union Territories
- 4) The State Regional Transport Officers of All States
- 5) The Chairman, Railway Board, New Delhi
- 6) Hon'ble Chairman, AWBI for information.

Certificate under Rule 96 of Transportation of Animals Rules 2001

Under Prevention of Cruelty to Animals Act, 1960

*(To be issued by an officer not below the rank of Assistant Commissioner/Director, Deputy Director or
Chief Veterinary Officer of Animal Husbandry Department)*

(Valid for Cattle Transported through Road Vehicles)

Date...../...../..... Time: (As per 24 hours clock)

(A) ANIMAL DETAILS

Sr No	Species	Breed	Age (as per dentition)	Sex & number of animals	Description Coat (Colour/Horn presentation/tail switch)	Please tick (√) or (×) wherever applicable		
						Fit for breeding purpose	Fit for Draught purpose	Fit for milking purpose
1								
2								
3								
4								
5								
6								

(B) Purpose of Transportation:

For Farming/Draught purpose

☐

For Milking/Breeding Purpose

☐

For Slaughter Purpose

☐

Any other reason (please specify) _____

(C) Registration Number of Vehicle _____

(D) Transported From _____ **To**

_____ via _____ (Provide full

addresses from where animals are loaded, and to be unloaded)

DURATION OF THE PROPOSED JOURNEY:

(E) Name and address of the transport

authority/agency _____

_____ **Contact number** _____

(F) Name and address of the vehicle's driver, & his driving license number

_____ **mobile number** _____

(G) Name and address of consignor _____

_____ mobile number _____

(H) Name and address of consignee

_____ mobile number _____

That all of the following conditions for transporting the animals are complied with :

1. The animals are free from infectious diseases and all animals are healthy and are fit to undertake the journey.
2. There are no animals which are unfit for transporting such as new born, injured, diseased, blind, emaciated, lame, fatigued animals, or those that have given birth during the preceding 72 hours or likely to give birth during transport.
3. Pregnant and young animals are not mixed with other animals during transport.
4. Different classes of animals are not mixed with other animals.
5. Troublesome animals have been given tranquilizers before loading.
6. Provision of feed - fodder, water and milking facilities have been made as follows :

7. The average space provided per cattle in the vehicle is strictly compliant with Rule 50, Tables I and II (enclosed).
8. Vehicle has ANIMAL CARRIER board clearly visible in Bright Color (having font size of not less than 25 sq cms per letter, in black on yellow background) on both front & back side of the vehicle.

I hereby certify that I have studied and understood the requirements of all the relevant Central and State Acts, rules and orders pertaining to the said animals, including the rules relating to transport of such animals and prevention of cruelty to animals, have been duly complied with.

According to consignor/applicant's statement made in front of me today the animal/animals are not being transported for any purpose contrary to any provision of any law.

If, during any stage of the journey of the vehicle any contravention or non compliance of any of the provisions of the Transport of Animals Rule 1978 and amendments made thereto is noticed and pointed out in writing by any officer or persons or Animal Welfare Organizations authorized for this purpose by the Animal Welfare Board of India or the Central Government, then, any permit or authorization issued for such transport shall have immediately to be cancelled by the concerned authority ; and it shall be the duty of the police to stop the further transport even from the intermediary station, and proceed against the said offenders and deal with the animal in accordance with law.

In all such cases (mentioned in the preceding paragraph), custody of the animals immediately after unloading from the truck or any other vehicle shall have to be given to the authorised Animal Welfare Organisation if available, or any other animal welfare organization having the capacity to take the said

animals into its care and custody, till the competent authority or the magistrate having jurisdiction decides about their care and upkeep.

That the all animals mentioned above have been vaccinated for :

(a) Type of vaccine:

(b) Date of vaccination:

Signed.....

Address.....

Mobile Number.....

the number and types of cattle being transported and quantity of rations and food provided.

(b) The consignee shall be informed about the train or vehicle in which the consignment of cattle is being sent and its arrival time in advance.

(c) The consignment of cattle shall be booked by the next train or vehicle and shall not be detained after the consignment is accepted for booking.

¹[50. The average space provided per cattle in Railway wagon or vehicle shall be as provided in Tables I and II as given below:

TABLE I
SPACE ALLOWANCE PER CATTLE

Cattle weighing upto 200 Kg	1 Square Meter
Cattle weighing 200-300 Kg	1.20 Square Meter
Cattle weighing 300-400 Kg	1.40 Square Meter
Cattle weighing above 400 Kg	2.0 Square Meter

TABLE II
SPACE REQUIREMENT FOR CATTLE WHILE BEING TRANSPORTED
IN COMMONLY SIZED ROAD VEHICLES

Vehicle Size Length x Width Square Meter	Floor Area of the vehicle in Square Meter	Number of Cattle			
		Cattle weighing upto 200 Kg (1 Square Meter space Per Cattle)	Cattle weighing 200-300 Kg (1.20 Square Meter space Per Cattle)	Cattle weighing 300-400 Kg (1.40 Square Meter space Per Cattle)	Cattle weighing above 400 Kg. (2.0 Square Meter space per Cattle)
6.9 x 2.4	16.56	16	14	12	8
5.6 x 2.3	12.88	12	10	8	6
4.16 x 1.9	7.904	8	6	6	4
2.9 x 1.89	5.481	5	4	4	2]

1. Subs. by S.O. 2465(E), dated 22nd September, 2009, for rule 50 (w.e.f. 29-9-2009). Rule (50), before substitution, stood as under:

"50. The average space provided per cattle in railway wagon or vehicle shall not be less than two square metres."